23NWCV04142 23NWCV04142

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Division: Civil Law and Motion

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JESUS ORTEGA vs SEAN COHEN, Case No. 23NWCV04142

The matter is on calendar for a bond hearing pursuant to CCP § 529. On June 11, 2026, the Court granted Plaintiff Jesus Ortega's motion for a preliminary injunction and set a bond hearing for today. The parties were ordered to meet and confer regarding Defendant's entitlement to bond. If issues remain in dispute after meeting and conferring the parties were ordered to file a JOINT SEPARATE STATEMENT outlining their respective positions no later than August 7, 2026. Plaintiff was ordered to submit a declaration of indigency by August 7, 2026. The Court has reviewed the submissions by the parties which primarily address the merits of the underlying action. However, in its June 11, 2026 Order, the Court already found that Plaintiff has established a probability of success for purposes of the preliminary injunction. The issue before the Court at the bond hearing is whether the Court will order a bond, and if so, the amount of the bond. Allstate asks the Court to order a bond in the amount of $95,262.33. It appears this amount consists of the $50,000 note plus 10% interest per year beginning August 12, 2019. Plaintiff declares he "cannot post a $50,000 undertaking, much less an undertaking approaching $95,262.33, and [he] cannot afford the premium or collateral that a bonding company would require for an undertaking in either amount." (Ortega, Decl., ¶34.)

"On granting an injunction, the court or judge must require an undertaking on the part of the applicant to the effect that the applicant will pay to the party enjoined any damages, not exceeding an amount to be specified, the party may sustain by reason of the injunction, if the court finally decides that the applicant was not entitled to the injunction." (Code Civ. Proc., § 529.) "The court may, in its discretion, waive a provision for a bond in an action or proceeding and make such orders as may be appropriate as if the bond were given, if the court determines that the principal is unable to give the bond because the principal is indigent and is unable to obtain sufficient suretie whether personal or admitted surety insurers. In exercising its discretion the court shall take into consideration all factors it deems relevant, including but not limited to the character of the action or proceeding, the nature of the beneficiary, whether public or private, and the potential harm to the beneficiary if the provision for the bond is waived." (Code Civ. Proc., § 995.240.)

At this juncture, the Court
determines that the damages Allstate may sustain by reason of the injunction is the daily interest from the date of the bond hearing to the date of trial, May 25, 2027. The daily interest is $27.35. (Allstate Position re Bond, Ex. A, Beneficiary's Demand.) There are 284 days between the bond hearing and trial, so the interest accrued during this period will be $7,767.40.
Plaintiff has not demonstrated an inability to post bond in this amount.
Accordingly, Plaintiff is ordered to post bond with the Court in the amount of $7,767.40 within 30 days. Plaintiff to give notice.